

25NWCV04101 25NWCV04101

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-06-25

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Case Number: 25NWCV04101 Hearing Date: June 25, 2026 Dept: L

Plaintiffs Emeritus

Corporation and Brea Whitter, LLC's Motion for Summary Judgment is DENIED.

Plaintiffs to give notice.

Background

This is an unlawful detainer

action. On November 14, 2025, Plaintiffs Emeritus Corporation ("Emeritus") and Brea Whitter, LLC, doing business as Brookdale Central Whittier, ("Brookdale") (collectively, "Plaintiffs") filed this action against Defendant Phyllis Saunders ("Defendant"). The Complaint alleges that Brookdale is a resident care facility for the elderly (RCFE) located at 8101 Painter Avenue in Whittier, California 90602 ("Premises"). Brookdale is the owner of Premises, and Emeritus Corporation is the lessee and property manager of the Premises. (Compl., ¶ 4.) On April 24, 2024, the parties entered into a Residency Agreement, wherein Defendant agreed to pay \$3,291.00 in monthly rent. On August 11, 2025, Plaintiffs served a 30-day notice to pay or quit on Defendant.

Plaintiffs now move for summary judgment, or in the alternative, for summary adjudication.

This matter was continued from

April 30, 2026 to May 14, 2026. (4/30/26 Minute Order.) On May 13, 2025, Defendant filed an opposition. On May 14, 2026, the matter was continued to June 3, 2026. (5/14/26 Minute Order.)

On June 2, 2026, Plaintiffs filed

a Supplemental Declaration of Chanel Sanchez in Support of Motion for Summary Judgment.

That same day, Defendant filed a supplemental opposition.

On June 3, 2026, the matter was continued to June 11, 2206 to allow Plaintiffs to file a written reply. (6/3/26 Minute Order.)

On June 10, 2026, Plaintiffs filed a reply.

On June 11, 2026, the matter was continued to today's date allow the Court to consider the reply filed the day before. (6/11/26 Minute Order.)

Evidentiary Objections

Plaintiffs' evidentiary objections to Exhibits D and B attached to the Declaration of Defendant are overruled.

Legal Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c, subdivision (c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, internal citations omitted.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (Juge v. County of Sacramento (1993) 12

Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 381-382.)

In moving for summary judgment, a plaintiff has met its “burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(1).)

Once a moving party has satisfied the initial burden of proof, the burden “shifts to the opposing party to show, by responsive separate statement and admissible evidence, that triable issues of fact exist.” (Ostayan v. Serrano Reconveyance Co. (2000) 77 Cal.App.4th 1411, 1418, disapproved on other grounds by Black Sky Cap., LLC v. Cobb (2019) 7 Cal.5th 156, 165.) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

Discussion

Plaintiff offers the following undisputed material facts:

Plaintiff Brea Whittier LLC owns the Subject Property, and Plaintiff Emeritus Corporation is the lessee and property manager that oversees Brookdale Central Whittier’s day-to-day operations. (UMF Nos. 4-5.) Both Plaintiffs are licensed by State of California, Department of Social Services as a Residential Care Facility for the Elderly (RCFE). (UMF No. 6.)

On April 24, 2024, Defendant entered into a Residency Agreement with Plaintiffs to reside at the Subject Property. (UMF No. 7.) Defendant initially agreed to a monthly rate in the amount of \$3,291.00, which was comprised of a Basic Service Rate (“BSR”) of \$3,205.00 and a Personal Service Rate (“PSR”) of \$86.00. Defendant was provided with a monthly market rate discount in the amount of \$405.00, bringing her total monthly rent (“TMR”) to \$2,886.00. (UMF Nos. 10-11.) On January 1, 2025, Defendant’s BSR was increased to \$3,431.00, her PSR was increased to \$90.00, and her monthly market rate discount remained unchanged. As of January 1, 2025,

her TMR, including her monthly discount, remained at \$3,116.00. (UMF Nos. 12-13.)

Defendant last made a payment in July of 2024, which consisted of a partial payment of \$1,000.00. (UMF No. 14.) On August 11, 2025, Plaintiffs personally served Defendant with a 30-Day Notice to Pay or Quit ("Notice"). (UMF No. 15.) Plaintiffs note that Operations Specialist Mario Preston and the prior Executive Director have been attempting to work with Defendant regarding her failure to pay rent for several months prior to serving the Notice, but they were unsuccessful. (Preston Decl., ¶¶ 5-6.)

The total amount due in the 30-Day Notice was \$36,472.00 ("Total Amount Due"), reflecting unpaid fees for basic services since September 2024. The Total Amount Due did not include late fees, optional or ancillary fees, fees beyond the rate for basic services, or fees that were incurred more than 12 months before the 30-Day Notice was served. (UMF Nos. 16-17.) The Notice explicitly stated that Defendant had to pay the Total Amount Due or surrender possession of the Subject Property by September 10, 2025.

Defendant did not pay the Total Amount Due or vacate the Premises before the September 10 termination date, so Plaintiffs filed the instant lawsuit on November 14, 2025. (UMF Nos. 19-20.) As of the filing of this Motion, Defendant continues to occupy the premises despite her failure to pay past-due rent. (UMF No. 22.)

Plaintiffs thus assert that 1) Plaintiffs are entitled to possession of the premises, and 2) Plaintiffs are entitled to money damages. Such issues are explained in more detail below.

Section 87224 of Title 22 of the California Code of Regulations allows RCFEs to evict a resident for non-payment of the rate for basic services within ten days of the due date, provided the RCFE issues thirty days' written notice to the resident. (22 C.C.R., § 87224, subd. (a)(1).)

Health and Safety Code section 1569.683 and Title 22 of the California Code of Regulations section 87224 set forth the requirements for a notice of eviction of a resident. The notice of

eviction must state 1) the reasons relied upon for the eviction, with specific facts to permit determination of the date, place, witnesses, and circumstances concerning those reasons, 2) effective date of the eviction, 3) resources available to assist in identifying alternative housing and care options, 4) information about the resident's right to file a complaint with the Department of Social Services. (Health & Safety Code, § 1569.683, subds. (a)(1)-(3); 22 C.C.R. § 87224, subds. (d)(1)(A)-(C).) In addition, the notice must contain the following statement:

“In order to evict a resident who remains in the facility after the effective date of the eviction, the residential care facility for the elderly must file an unlawful detainer action in superior court and receive a written judgment signed by a judge. If the facility pursues the unlawful detainer action, you must be served with a summons and complaint. You have the right to contest the eviction in writing and through a hearing.”

(Health & Safety Code, § 1569.683, subd. (a)(4); 22 C.C.R. § 87224, subd. (d)(1)(D).)

Plaintiffs argue that they personally served a 30-day Notice to Pay or Quit on Defendant on August 11, 2025. (UMF No. 15.) The Notice sought for Defendant to pay unpaid fees for basic services, comprising of a base monthly fee plus fees based on the resident's specific care needs, since September 2024. (UMF No. 17.) The Notice identifies the Subject Property, the amounts due, the effective date of eviction, housing resources, and information about Defendant's right to file a complaint. (Ferguson Decl., ¶ 3, Exh. B.) The Notice also contains the required disclosure regarding Defendant's right to contest the unlawful detainer action. (Ibid.)

Plaintiffs assert that Defendant failed to pay her past-due rent by the September 10, 2025 termination date and continues to unlawfully occupy the premises. (UMF Nos. 18-20, 22.) Thus, Plaintiffs are entitled to recover possession of the Subject Property.

Plaintiffs further assert that they have proven entitlement to past-due rent and holdover damages. Defendant's unpaid rent at the time the Notice was served was \$36,472.00. (UMF No. 16.) Further, Defendant failed to pay the prorated rent, \$1,038.70, that became due for September 1, 2025 through September 10, 2025, during the period of time

that the Notice was pending. (UMF Nos. 19, 24.)

As to holdover damages, the fair rental value of the Subject Property is \$102.44 per day. (UMF No. 25.) Such value was calculated by multiplying the monthly rate for Defendant's monthly rent, \$3,116.00, by 12 months and dividing the total by 365 days. (Ibid.)

Thus, Plaintiffs' damages are summarized as follows: "past-due rent of \$36,472.00, an additional \$1,038.70 in unpaid rent that accrued while the Notice was pending from September 1, 2025, through September 10, 2025, and an award of holdover damages from September 11, 2025, through the date of judgment, at a rate of \$102.44 per day." (Mot., 6:2-5.)

The Court finds that Plaintiffs have met their burden in establishing 1) elements required for possession of the Subject Property pursuant to Health and Safety Code section 1569.683 and Title 22 of the California Code of Regulations section 87224, and 2) entitlement to unpaid rent damages.

Defendant's opposition and supplemental opposition make three primary arguments: 1) a triable issue of fact exists as to Plaintiffs' standing, 2) a triable issue of fact exists as to the habitability of the unit, and 3) Plaintiffs cannot meet all elements of their unlawful detainer claim because the underlying notice is defective.

The Court will address each argument in turn.

Standing

Under Code of Civil

Procedure section 367, "every action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute."

Under Code of Civil

Procedure section 1172, "the plaintiff shall only be required to show, in addition to the forcible entry or forcible detainer complained of, that he was peaceably in the actual possession at the time of the forcible entry, or was entitled to the possession at the time of the forcible detainer."

Defendant argues that a triable issue of fact exists as to whether Plaintiffs have standing to maintain this action. Defendant offers evidence that, on April 30, 2026, Brookdale sent a letter to Defendant stating, in relevant part, that “on or around June 1, 2026, Brookdale Central Whittier will transition to Oxford Health Group.” (Saunders Decl., ¶ 7, Exh. A.) On the same date, non-party Oxford Health Group, LLC (“Oxford”) sent a letter to Defendant stating that it was the new operational manager for the facility. (Saunders Decl., ¶¶ 8-9, Exh. B.) Defendant argues that Oxford is a distinct business entity from either of the Plaintiffs. (Saunders Decl., ¶¶ 11-12, Exh. C.) Because it is unclear whether Plaintiffs retain possession of the Subject Property, a triable issue of fact exists as to their standing.

On June 2, 2026, Plaintiffs submitted Supplemental Declaration of Chanel Sanchez in Support of Motion for Summary Judgment. Chanel Sanchez is the Executive Director of Brookdale. (Sanchez Supp. Decl., ¶ 1.) Sanchez confirms that the April 30, 2026 letter from Brookdale was sent to Defendant. (Sanchez Decl., ¶ 3.) However, Sanchez declares that the transition has not yet occurred, and Plaintiffs expect that it will occur in July 2026. (Sanchez Supp. Decl., ¶ 4.) Plaintiffs still own and operate the facility, and Plaintiffs remain licensed by the California Department of Social Services to operate Brookdale as an RCFE. (Sanchez Supp. Decl., ¶ 5.)

In Defendant’s supplemental opposition, Defendant argues that the submitted Supplemental Declaration of Chanel Sanchez is insufficient. Plaintiffs have not produced any documentation proving effective date of the change in ownership. Thus, a triable issue of fact exists as to current ownership.

In reply, Plaintiffs have submitted a second Supplemental Declaration of Chanel Sanchez in Support of Motion for Summary Judgment stating that the transition of ownership and operation has not occurred yet and that Plaintiffs remain licensed by the California Department of Social Services to operate Brookdale as an RCFE. (Second Sanchez Supp. Decl., ¶ 3, 7.)

Here, the Court finds that a triable issue of material fact exists as to whether Brookdale has standing to

continue with the instant suit. While Code of Civil Procedure sections 1172 indicates that the moment for establishing standing is at the time of the alleged unlawful detainer, this unlawful detainer action is brought under Health and Safety Code Section 1569.683 and Section 87224 of Title 22 of the California Code of Regulations. Under these statutes, there is no similar language to section 1172 indicating when standing is established for purposes of bringing the unlawful detainer action against a defendant in a residential care facility. Given the basis of an unlawful detainer action is right to possession, Brookdale would no longer have the right to possess the Premises if they transferred their interest or ownership in the Premises.

Based on the letters

submitted by Defendant, Plaintiffs may have sold or transferred the Premises to Oxford, assigned its ownership and/or management responsibilities to Oxford, and/or subcontracting its management of the property. (Saunders Decl., ¶¶ 8-9, Exh. B.) While Plaintiffs submit the Supplemental Declaration of Chanel Sanchez and the second Supplemental Declaration of Chanel Sanchez to state that the transition in ownership will not take place until July, there is no documentation supporting this assertion. (Sanchez Decl., ¶ 4.) At this time, the Court is not persuaded by the evidence that Plaintiffs have standing as a matter of law. The bottom line is that Plaintiffs' possession of the Premises is currently disputed.

Because the parties offer

contradicting evidence regarding standing, the Court finds that a triable issue of fact exists.

Habitability

Pursuant to Code of Civil

Procedure section 1174.2, "when a tenant raises breach of the warranty of habitability as an affirmative defense in an unlawful detainer case, the trial court is required to determine whether a substantial breach has occurred" and if it did, the court must reduce the rent to reflect the breach, give the tenant the right to possession conditioned on the tenant paying the reduced rental rate, order the rent remain reduced until the repairs are made, and award costs and attorney fees to the tenant if permitted under the law and the contract between the parties. (Hyatt v. Tedesco ("Hyatt") (2002) 96 Cal.App.4th Supp. 62, 67.) "Substantial breach" is defined to mean the 'failure of the landlord to comply with applicable building and housing code

standards which materially affect health and safety.” (Ibid.)

In opposition, Defendant

argues that a triable issue of fact exists related to the habitability of Defendant's unit. In support, Defendant submits photos of roaches in her unit and work orders she has placed. (Saunders Decl., ¶¶ 14-17, Exhs. D- E.) Defendant argues that a triable issue of fact exists as to whether the condition of unit consists of a substantial breach such that the value of the rental unit should be reduced.

In reply, Plaintiffs assert

that Defendant's evidence is inadmissible. Defendant did not adequately authenticate Exhibits D and E—Defendant did not date those documents on the documents themselves or in the supporting declaration. Plaintiffs have objected to Defendant's evidence. Further, if these photographs were taken after November 2025, when the Complaint was filed, they are irrelevant as to whether Defendant's unit was uninhabitable during her residency. Lastly, a single photograph of a single insect does not rise to the level of “substantial breach.”

The Court is not persuaded

that a triable issue of fact exists as to whether Plaintiffs committed a “substantial breach” of the warranty of habitability. In other words, the Court finds that Defendant's evidence—photos of a single cockroach and a single work order stating that pest control would treat the unit—is insufficient to prove that Plaintiffs failed to comply with applicable building and housing code standards such that Defendant's health and safety was affected. (See Hyatt, *supra*, 96 Cal.App.4th Supp. at p. 67.)

Thus, Defendant has not

demonstrated a triable issue of fact as to the defense of habitability.

Validity of Notice

In the supplemental

opposition, Defendant argues that Plaintiffs cannot meet their burden of proof because the Plaintiff's 3-day Notice to Pay Rent or Quit (hereinafter, “Notice”) is defective. Specifically, the Notice demands rent demands rent in the amounts of \$2,886 for the months from September 2024 through December 2024, and \$3,116 for the months from January 2025 through August 2025. (Compl., Exh.

2.) However, the Residency Agreement (Compl., Exh. 1) reveals that “rent” is actually a Basic Services Fee that is defined to include “Accommodations,” “Dining Services,” “Utility Services,” Housekeeping Services,” “Laundry and Linen Services,” “Activities Program,” “Transportation,” “Staffing 24 hours a day,” “Observation and Consultation,” “Assistance with Access to Outside Services,” and “Personal Services.” Such fees, aside from fees for “Accommodations,” do not constitute rent. Defendant thus argues that the Complaint improperly uses summary unlawful detainer procedures to seek regular contract damages above rent damages.

Defendant cites cases

analyzing Code of Civil Procedure section 1161, subdivision (2) regarding the elements for unlawful detainer actions based on nonpayment of rent. Defendant argues that “even a minor overstatement of rent owed [in a 3-day notice to pay rent or quit] may be sufficient to render the notice defective.” (Supp. Opp., 6:5.)

In reply, Plaintiffs argue

that Title 22 of the California Code of Regulations section 87464, subdivision (f) requires that RCFEs must provide “basic services,” that at a minimum, includes “care and supervision,” “safe and healthful living accommodations and services,” “three nutritionally well-balanced meals and snacks made available daily,” “personal assistance and care as needed by the resident ... with activities of daily living,” “[a]rrangements to meet health needs, including arranging transportation,” and “[a] planned activities program which includes social and recreational activities appropriate to the interests and capabilities of the resident.” Title 22 of the California Code of Regulations section 87224, subdivision (a)(1) states that an RCFE may evict a resident based on nonpayment of such “basic services.” Here, Plaintiffs properly seek to evict Defendant based on nonpayment of basic services. Thus, Defendant’s distinction between rent and other services is irrelevant—those other categories are included in the definition of “basic services.” Plaintiffs are entitled to evict Defendant and to recover amount owed for nonpayment of basic services. Thus, the Notice is not defective.

As stated previously, the Court finds that the rules

regarding notices of eviction to residents of RCFEs are governed by Health and Safety Code section 1569.683 and Title 22 of the California Code of Regulations section 87224, subdivision (d). Further, as noted by Plaintiffs, Title 22 of the California Code of Regulations section 87224, subdivision (a)(1) states

that an RCFE may evict a resident based on “[n]onpayment of the rate for basic services within ten days of the due date.”

Thus, the requirements for 3-day notices to pay or quit, based on nonpayment of rent, outlined in Code of Civil Procedure section 1161, subdivision (2) and case authority citing such Code section, are inapplicable. The Notice served on Defendant is not defective under the applicable statutes.

Thus, Defendant has not demonstrated a triable issue of fact as to whether the Notice is defective.

Conclusion

As Defendant has established a triable issue of fact as to standing, Plaintiffs’ Motion for Summary Judgment is denied.